



CHAPTER xiv.

An Act to confer powers upon the urban district council of Chiswick in relation to the acquisition of lands and for other purposes. A.D. 1914.
[8th July 1914.]

WHEREAS the urban district of Chiswick in the county of Middlesex (in this Act referred to as "the district") is an urban district within the meaning of the Local Government Act 1894 and is under the management and control of the urban district council of Chiswick (in this Act referred to as "the Council"):

And whereas in pursuance of section 44 of the Sanitary Act 1866 (re-enacted by section 343 of the Public Health Act 1875) the estate property rights powers duties and liabilities of the burial board for the parish of Chiswick were by resolution of the vestry of the parish of Chiswick and by agreement of the said burial board and the Chiswick Local Board dated the sixth day of November one thousand eight hundred and eighty-three transferred to the Chiswick Local Board to the intent that the said Chiswick Local Board should have all such estate property rights duties and liabilities as if they had been duly appointed a burial board under the Burial Acts then in force:

And whereas the Council as the burial board for the district are the owners of a burial ground (in this Act referred to as "the Chiswick Burial Ground") situate within the district lying to the south-west of Saint Nicholas' Church:

And whereas it is expedient that provision should be made for the enlargement of the Chiswick Burial Ground and for that purpose that the Council should be empowered to acquire and use the lands in this Act described which are the only

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A.D. 1914. — lands unbuilt upon on which the said burial ground could be extended :

46 Geo. 3.
c. 111.

And whereas by the Act 46 Georgii III. cap. 111 intituled "An Act for extinguishing all Right of Common over certain "Parcels of Land in the Parish of Chiswick in the County "of Middlesex" the churchwardens and overseers of the poor of the parish of Chiswick were authorised to receive and take a perpetual annuity or yearly rentcharge of one hundred and seven pounds fourteen shillings to be issuing payable had received and taken by from and out of certain lands grounds and appurtenances in the said parish of Chiswick described in section II. of the said Act and were required by section V. of the said Act to apply and dispose of the said perpetual annuity or yearly rentcharge for or towards the relief and maintenance of the poor of the said parish of Chiswick in such and the same manner as the rates for the relief and maintenance of the poor are by law directed to be applied :

And whereas the said perpetual annuity or rentcharge is now payable to the overseers of the parish of Chiswick and the Council are the owners of a portion of the said lands grounds and appurtenances and it is expedient that provision should be made for the redemption of the said perpetual annuity or rentcharge and for the investment of the moneys to be paid to the said overseers in consideration of the redemption thereof and for the application and disposal of the income therefrom :

And whereas it is expedient that the other provisions contained in this Act be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas in relation to the promotion of the Bill for this Act the requirements of the Borough Funds Acts 1872 and 1903 have been observed :

And whereas plans of the lands and other property intended to be taken or used compulsorily under the powers of this Act and a book of reference to those plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the lands and property required or which may be taken or used for the purposes or under the powers of this

Act were duly deposited with the clerk of the peace for the county of Middlesex and are in this Act referred to as the deposited plans and book of reference: A.D. 1914.

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I.

PRELIMINARY.

1. This Act may be cited as the Chiswick Urban District Council Act 1914. Short title.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Financial and Miscellaneous.

Division of
Act into
Parts.

3. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845) so far as the same are applicable for the purposes and are not inconsistent with or expressly varied by the provisions of this Act are hereby incorporated with and form part of this Act. Incorporation of Acts.

4. In this Act the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith or by the Public Health Acts have the same respective meanings unless there be something in the subject or context repugnant to such construction and in the Acts so incorporated with this Act the expressions “the undertakers” and “the promoters of the undertaking” shall for the purposes of this Act mean the Council And in this Act unless the subject or context otherwise requires— Interpretation.

“The district” means the urban district of Chiswick;

“The Council” means the urban district council of the district;

“The Act of 1911” means the Chiswick Urban District Council Act 1911;

“The Chiswick Burial Ground” means the burial ground belonging to the Council as the burial board for the district situate within the district and lying to the south-west of Saint Nicholas' Church;

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“The clerk” means the clerk of the Council and includes any person duly authorised to discharge temporarily the duties of that office;

“The district fund” and “the general district rate” mean respectively the district fund and the general district rate of the district.

PART II.

LANDS.

Power to
take lands
for purposes
of burial
ground.

5. Subject to the provisions of this Act the Council may enter upon take and use for the purposes of a burial ground or as an addition to the Chiswick Burial Ground all or any part of the lands delineated on the deposited plans and described in the deposited book of reference (that is to say):—

A piece of land used as a garden containing in the whole by admeasurement one acre two roods thirty-eight perches or thereabouts bounded on the north and north-west in part by a public walk known as Powell’s Walk and in other part by Burlington Lane on the west and south-west by the grounds belonging to the St. Mary’s Convent and Hospital and on all other sides by the existing burial ground of the Council.

Power to
use lands for
burial
grounds.

6. The Council may after they shall have acquired all or any part of the lands described in the section of this Act of which the marginal note is “Power to take lands for purposes of burial ground” appropriate and use the lands so acquired for the purposes of a burial ground or as an addition to the Chiswick Burial Ground and for purposes connected therewith and may on and in relation to all or any of those lands or any part thereof (when so acquired) exercise all the powers of the Council acting as the burial board for the district under the Burial Acts 1852 to 1906.

Period for
compulsory
purchase of
lands.

7. The powers of the Council for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act.

Correction of
errors in de-
posited plans
and book of
reference.

8. If there be any omission mis-statement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plans or specified in the deposited book of reference the Council after giving ten days’ notice to the owners lessees and occupiers of the lands in

question may apply to two justices acting for the district for the correction thereof and if it appear to the justices that the omission mis-statement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is mis-stated or wrongly described and such certificate shall be deposited with the clerk of the peace for the county of Middlesex and a duplicate thereof shall also be deposited with the clerk and such certificate and duplicate respectively shall be kept by such clerks respectively with the other documents to which the same relate and thereupon the deposited plans and book of reference shall be deemed to be corrected according to such certificate and it shall be lawful for the Council to take the lands and execute the works in accordance with such certificate. A.D. 1914.

9. In determining any question of disputed purchase money or compensation payable in respect of lands taken in pursuance of this Part of this Act the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (in this section referred to as "the tribunal") shall not award any sum of money for or in respect of any improvement alteration or building made or erected or for or in respect of any interest in the land created after the first day of January one thousand nine hundred and fourteen if in the opinion of the tribunal the improvement alteration or building or the creation of the interest in respect of which the claim is made was not reasonably necessary and was made erected or created with a view to obtaining or increasing compensation under this Act. Provisions as to compensation.

10. The following sections of the Act of 1911 are hereby incorporated with and form part of this Part of this Act and shall extend and apply to the lands by this Part of this Act authorised to be acquired and to the Council in respect thereof as fully and effectually for all intents and purposes as if such sections had been in terms re-enacted in this Act (that is to say):— Incorporation of certain provisions of Act of 1911 with this Part of Act.

- Section 13 (Costs of arbitration &c. in certain cases);
- Section 15 (Persons under disability may grant easements &c.);
- Section 16 (Power to retain sell &c. lands);
- Section 17 (Proceeds of sale of surplus lands).

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PART III.

FINANCIAL AND MISCELLANEOUS.

Power to
 borrow.

11.—(1) The Council may from time to time independently of any other borrowing power borrow at interest for the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall pay off all money so borrowed within the respective periods each of which is in this Act referred to as “the prescribed period” mentioned in the third column of the said table (namely):—

Purpose.	Amount.	Period for Repayment.
(a) For and in connection with the purchase of lands for the purposes of burial grounds.	The sum requisite.	Sixty years from the date or dates of borrowing.
(b) For payment of the costs charges and expenses of this Act as hereinafter provided.	The sum requisite.	Five years from the passing of this Act.

(2) The Council may also with the consent of the Local Government Board borrow such further money as may be necessary for any of the purposes of this Act Any money borrowed under this subsection shall be repaid within such period (in this Act referred to as “the prescribed period”) as may be prescribed by the Local Government Board.

(3) In order to secure the repayment of the moneys borrowed under this section and the payment of the interest thereon the Council may mortgage or charge—

As regards moneys borrowed for the purposes (a) hereinbefore mentioned the fund or rate out of which the expenses of the Council acting as the burial board for the district are payable:

As regards moneys borrowed for the purposes (b) hereinbefore mentioned the district fund and general district rate:

As regards moneys borrowed with the consent of the Local Government Board such fund rate or revenue as the Board may prescribe.

The provisions of this subsection shall not limit the powers conferred upon the Council by section 177 (Power to use one form of mortgage for all purposes) of the Act of 1911. A.D. 1914.

12. All moneys borrowed by the Council under the powers of this Act shall be applied only to the purposes for which they are authorised to be borrowed and (except in the case of money borrowed for current expenses) to which capital is properly applicable. Application of money borrowed.

13. The following provisions of the Act of 1911 (namely):— Application of certain sections of Act of 1911.

Section 171 (Section 234 of Public Health Act 1875 not to apply);

Section 173 (Provisions as to mortgages);

Section 174 (Protection of lender from inquiry);

Section 175 (Mode of payment off of money borrowed);

Section 176 (Sinking fund);

Section 179 (Payment of sale money &c. to sinking fund);

Section 180 (Council not to regard trusts);

shall subject to the provisions of this Act extend and apply mutatis mutandis to and in the case of moneys to be borrowed under the provisions of this Act and such sections shall be incorporated in this Act and be read and have effect as if they had reference to money borrowed under the powers of this Act.

14.—(1) For the purpose of providing temporarily during any financial year for their current expenses as a sanitary or education authority (whether under the provisions of public general or local Acts) and after the commencement of such year it shall be lawful for the Council to borrow by way of temporary loan or overdraft from any bank or on temporary loan on deposit receipt from any person such sums as they may from time to time resolve not exceeding in each case an amount equal to one third of the amount of the before-mentioned expenses for the immediately preceding financial year for any such purpose as aforesaid and any amount so borrowed shall form a charge upon the rates or revenue of the undertaking in respect of which it is borrowed as the same may be specified in the resolution of the Council authorising such borrowing *pari passu* with any bond or mortgage affecting the same and it shall further be lawful for the Council to utilise for providing As to temporary borrowing.

A.D. 1914. temporarily for any such expenses any sinking funds which they may have in hand crediting the said sinking funds with such fair rate of interest not being less than three pounds per centum per annum as they may resolve Provided that—

(A) Any sum so borrowed together with the interest thereon shall in the case of any sum borrowed on the credit of a rate be repaid out of such rate within the financial year during which the same was borrowed and in any other case the same shall be repaid out of the income on the credit of which the sum was borrowed within three months after the expiration of such financial year :

(B) The clerk shall within forty-two days after the end of each financial year furnish to the Local Government Board a special report showing precisely the operation of the powers of this section during such year and such report shall be in such form and shall contain such information as that Board shall approve or require :

(c) The Local Government Board may make such investigation as may be necessary to satisfy themselves that the requirements of this section as to repayment have been complied with and if it appear to the Local Government Board by the said report or by such investigation that the Council have failed to comply with the requirements of this section as to repayment that Board may by order suspend the operation of the powers of this section for such period as they may think fit.

(2) The provisions of this section shall cease to be in force at the expiration of five years from the thirty-first day of March one thousand nine hundred and fifteen unless they shall have been continued by Act of Parliament or Provisional Order made by the Local Government Board and confirmed by Parliament which Order the Local Government Board are hereby empowered to make in accordance with the provisions of the Public Health Act 1875 and in the event of that Board making any such Order they are hereby empowered to make such modifications or amendments in the provisions of this section as may appear to them to be necessary.

15.—(1) The owner or owners for the time being of the lands grounds and appurtenances in the parish of Chiswick referred to in section II. (For paying a rentcharge to the churchwardens and overseers of the poor out of the lands upon which the right of common shall be extinguished) of the recited Act 46 Georgii III. cap. 111 on the one hand and the overseers of the poor of the parish of Chiswick (in this section referred to as “the overseers”) on the other hand may at any time after the passing of this Act subject to the provisions of this section agree for the redemption of the perpetual annuity or yearly rentcharge of one hundred and seven pounds fourteen shillings issuing payable had received and taken by from and out of all and singular the said lands grounds and appurtenances under and by virtue of the said section.

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 Power to re-
 deem rent-
 charge pay-
 able to
 overseers of
 Chiswick.

(2) The consideration for the redemption of the said perpetual annuity or yearly rentcharge shall be the payment by the said owner or owners of such a sum of money as if invested in two and a half per centum consolidated stock will produce the yearly sum of one hundred and seven pounds fourteen shillings and all costs charges duties fees and expenses of and in relation to the redemption of the said perpetual annuity or yearly rentcharge and the investment of the said sum of money shall be borne and paid by the said owner or owners.

(3) The said sum of money shall be paid to the Council who shall forthwith upon receipt thereof invest the same in two and a half per centum consolidated stock and the income thereof shall be applied in the same manner as the said perpetual annuity or yearly rentcharge and in all respects in accordance with the provisions of the recited Act 46 Georgii III. cap. 111.

16. Save as otherwise by this Act expressly provided all expenses incurred by the Council in carrying into execution the provisions of this Act (except such of those expenses as are to be paid out of borrowed moneys) shall be paid out of the district fund or general district rate Provided that when any expenditure is incurred or any money is received for purposes common to two or more accounts the Council may apportion the same between those accounts in such manner as they deem equitable.

Expenses of
 executing
 Act.

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Incorporation of certain sections of Act of 1911.

17. The following sections of the Act of 1911 are incorporated with this Act and shall apply as if the same with the necessary modifications were set out in this Act (namely):—

Section 210 (Inquiries by Local Government Board);

Section 211 (Powers of Act cumulative).

Amendment of section 103 of Act of 1911.

18. Section 103 (Extension of definition of drain) of the Act of 1911 shall be read and have effect as if the word “subsections” were inserted in paragraph (D) of subsection (1) of that section instead of the word “exceptions.”

Crown rights.

19. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown.

Expenses of Act.

20. The costs charges and expenses preliminary to and of and incidental to preparing and obtaining this Act including the costs charges and expenses preliminary to and of and connected with the compliance with the requirements of the Borough Funds Acts 1872 and 1903 shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and general district rate or out of moneys to be borrowed by the Council under this Act.

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